

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****WILLIAM CONNOR,**

Plaintiff,

-against-

**THE CITY OF NEW YORK;
DETECTIVE KYLE F. FLOOD (Shield
#6020),**

Defendants.

Index No.:

SUMMONSPlaintiff designates Bronx County as
the place of trial

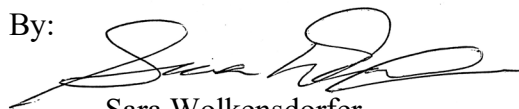
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
August 21, 2023**Rickner PLLC**

By:



Sara Wolkenstorfer

14 Wall Street, Suite 1603

New York, New York 10005

Phone: (212) 300-6506

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Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, NY 10007

Detective KYLE F. FLOOD
Shield #6020
Narcotics Bureau – Bronx
500 Abbott Street
Bronx, NY 10470

**SUPREME COURT OF THE STATE OF NEW YORK
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COMPLAINT

Plaintiff WILLIAM CONNOR, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiff’s rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, Bronx County, because Plaintiff’s claims arose in Bronx County.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff WILLIAM CONNOR is, and was at all times relevant to this action, a resident of Bronx County in the State of New York.

7. Defendant the CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

8. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

9. Defendant Detective KYLE F. FLOOD (Shield No. 6020) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law and acting in the course and scope of his duties. He was acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in him as an officer, agent, and employee of the NYPD and incidental to the lawful pursuit of his duties as an officer, employee, and agent of the NYPD. He is sued in his individual capacity.

10. Detective Flood is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

11. At night on December 1, 2021, Mr. Connor was walking down Hunts Point Avenue, towards Gilbert Place, on his way home from McDonald's.

12. Out of nowhere, he was approached by a man who said he was looking for someone by the name of Carl and that Mr. Connor looked familiar. Mr. Connor told him he did not know a man named Carl and continued walking.

13. The man followed him, brought up Carl again, and asked, “do you remember Tiffany, the girl we were hanging out with?” Mr. Connor told the man he had no clue what he was talking about, that he did not know a Carl or a Tiffany, and continued walking.

14. The man followed Mr. Connor and asked where he could get drugs; Mr. Connor told him he did not know. Finally, the man walked away, and Mr. Connor went into the corner store on Hunts Point Ave and Gilbert Place to grab his girlfriend a smoothie before going home.

15. Approximately five minutes later, as Mr. Connor was leaving the store, he watched as two vehicles full of uniformed police officers rushed the corner and began accosting individuals standing there.

16. Mr. Connor kept walking, but he was shortly stopped by a group of uniformed police. He tried to walk away, but they told him to wait.

17. Mr. Connor asked what was going on, but they told him not to worry; they asked for his name, and he provided it. After one of the officers communicated through their radio, a car pulled around the corner and inside was the man who had approached Mr. Connor earlier about buying drugs.

18. Without warning or explanation, the police began to search Mr. Connor. He asked what was happening, why he had been stopped, and whether he was under arrest, but the police did not respond to any of his questions.

19. Once the search concluded, Mr. Connor was handcuffed from behind and put in a van.

20. Mr. Connor against again what was happening and why he was being arrested, but the police remained silent.

21. Inside the van were seven other individuals who told Mr. Connor they had all been arrested as part of a sting operation. Mr. Connor did not know any of these individuals.

22. Mr. Connor was taken to the 41st Precinct, where he was photographed, fingerprinted, booked, and placed in a cell. At this point, the officers told Mr. Connor he was being charged with possession of crack cocaine with the intent to sell. He demanded to see the officer who had fabricated finding drugs on him, as he was shocked that he was being charged for something he did not have or do.

23. Eventually, Mr. Connor was taken to central bookings and arraigned on December 2, 2021.

24. Mr. Connor spent two months on Rikers Island before being released.

25. The case against Mr. Connor was ultimately dismissed on July 15, 2022.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

26. Defendant Flood has a history of violating people's civil rights while employed by the NYPD, including three civil lawsuits, one of which is still ongoing.

27. Despite these repeated incidents of misconduct, the City of New York has failed to meaningfully discipline or properly supervise Defendant Flood.

THE INJURIES TO PLAINTIFF

28. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering and loss of liberty that Plaintiff was forced to endure as a consequence of the NYPD's decidedly wrongful actions.

29. Defendant Flood's actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such he is liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

30. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
ILLEGAL SEARCH UNDER 42 U.S.C. § 1983
AGAINST DEFENDANTS**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

32. The NYPD, including Defendant Flood, searched Plaintiff without probable cause.

33. Even if there was probable cause, the manner in which the search was conducted was unreasonable.

34. That by virtue of the aforementioned acts by the NYPD and Defendant Flood, Plaintiff was deprived of his civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

35. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

36. As a result of the above unconstitutional conduct, Defendant Flood is liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST DEFENDANTS**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. The NYPD, including Defendant Flood, restrained and arrested Plaintiff without probable cause.

39. That by virtue of the aforementioned acts by the NYPD and Defendant Flood, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and Defendant Flood is therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

40. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer economic and emotional injuries, as well as a deprivation of liberty.

41. As a result of the above unconstitutional conduct, Defendant Flood is liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST DEFENDANTS**

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

43. Defendant Flood initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

44. That by virtue of the aforementioned acts by Defendant Flood, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free

from unreasonable or unlawful searches and seizures, and Defendant Flood is therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

45. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer economic and emotional injuries, as well as a deprivation of liberty.

46. As a result of the above unconstitutional conduct, Defendant Flood is liable for punitive damages.

**FOURTH CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST DEFENDANTS**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. Defendant Flood provided false evidence and statements to the prosecution, defense counsel, and court, including allegations that Plaintiff was in possession of crack cocaine.

50. That by virtue of the aforementioned acts by Defendant Flood, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution to be free from prosecution based on false statements and under *Brady v. Maryland*, 373 U.S. 83 (1963), and Defendant Flood is therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

51. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer economic and emotional injuries, as well as a deprivation of liberty.

**FIFTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
DEFENDANT FLOOD AND THE CITY OF NEW YORK**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. Plaintiff was arrested, handcuffed, and detained in the absence of probable cause by the NYPD, including Defendant Flood.

54. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

55. Plaintiff was conscious of the confinement and did not consent to such confinement.

56. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

57. As a result of the above tortious conduct, Defendant Flood is liable for punitive damages.

58. The City of New York is liable for the conduct of Defendant Flood and any damages he caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST DEFENDANT FLOOD AND THE
CITY OF NEW YORK**

59. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

60. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the NYPD, including Defendant Flood.

61. The City of New York is liable as the employer of Defendant Flood under New York City Administrative Code § 8-803(b).

62. Qualified immunity is no defense to this claim.

63. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

64. As a result of the above unconstitutional conduct, Defendant Flood is liable for punitive damages.

**SEVENTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION AGAINST DEFENDANT FLOOD
AND THE CITY OF NEW YORK**

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

66. Defendant Flood initiated a prosecution against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

67. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

68. As a result of the above unconstitutional conduct, Defendant Flood is liable for punitive damages.

69. The City of New York is liable for the conduct of Defendant Flood and any damages he caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

71. The City of New York negligently hired, screened, retained, supervised, and trained the NYPD, including Defendant Flood. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

72. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

73. As a result of the above unconstitutional conduct, Defendant Flood is liable for punitive damages.

74. The City of New York is liable for the conduct of Defendant Flood and any damages he caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

76. The City of New York is liable for the conduct of the NYPD and Defendant Flood under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

77. As a result, the City of New York is liable for any damages caused, except for punitive damages.

**TENTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST DEFENDANT FLOOD
AND THE CITY OF NEW YORK**

78. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

79. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

80. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution.

81. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

82. As a result of the above unconstitutional conduct, Defendant Flood is liable for punitive damages.

83. The City of New York is liable for the conduct of Defendant Flood and any damages he caused under the doctrine of *respondeat superior*.

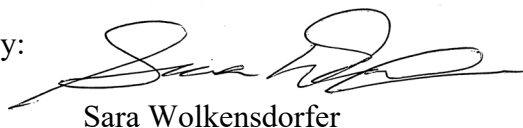
WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
August 21, 2023

Rickner PLLC

By:



Sara Wolkenstorfer

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Sara Wolkensdorfer, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff.

2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
August 21, 2023

Rickner PLLC

By:



Sara Wolkensdorfer

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
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Attorney for Plaintiff